

Court No. - 3

Case :- WRIT - C No. - 27504 of 2011

Petitioner :- Dhanpal Singh

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Ranjit Saxena

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Amitava Lala,J.

Hon'ble Ashok Srivastava,J.

Petitioner wants to raise dispute with regard to his electricity bills, when Mr. R.K.Misra, holding brief of Mr. Rajesh Tripathi, learned counsel appearing for the respondents submitted that the grievances with regard to the bills can be adjudicated under Clause 6.5 of U.P.Electricity Supply Code, 2005 (for short 'the Code') but condition of deposit is there. Learned counsel appearing for the petitioner contended before this Court that since the amount is highly excessive, he can be directed to make deposit of only 50 %, to which, learned counsel appearing for the respondents contended that in that case he can proceed before the Consumer Grievance Redressal Forum under Clause 7.10 of the Code. Therefore, subject to deposit of 50 % amount within a period of one week from the date of getting certified copy of this order, petitioner can make appropriate application before the Consumer Grievance Redressal Forum under Clause 7.10 of the Code, which shall be considered and disposed of upon giving fullest opportunity of hearing and by passing a reasoned order thereon within a period of 3 months thereafter.

However, at the time of consideration of the cause, if the concerned Forum finds that the case of the petitioner is genuine, it can, upon being satisfied, direct for re-connection of petitioner's electricity connection, of course, subject to payment of re-connection charges etc., irrespective of passing an order under Clause 7.10 of the Code.

The writ petition is accordingly disposed of, however, without any order as to costs.

Order Date :- 11.5.2011

Kst/